

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Filed on

-----X  
CORNELIUS M. JAMES,

Index No.

Plaintiff,

Plaintiff designates New York  
County as place of trial

-against-

**SUMMONS**

CITY OF NEW YORK, NEW YORK POLICE  
DEPARTMENT, POLICE OFFICER JUSTIN  
CONDE – Shield No.18142, POLICE  
OFFICER SAMUEL D. GARCIA – Shield No.  
24345, POLICE OFFICER BAJRAM D.  
DOMBALIC – Shield No. 25787, POLICE  
OFFICER BRYAN D. THOOHO – Shield No.  
5250, POLICE OFFICER EUGENE O.  
ADELEYE – Shield No. 1364 and POLICE  
OFFICER ANTHONY R. GROSSO – Shield  
No. 16983,

The basis of venue is the place of  
the occurrence of the tort.

Plaintiff resides at:  
2643 Sedgwick Avenue, Apt. #52  
Bronx, NY 10468

County of Bronx

Defendants.  
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York  
June 4, 2021

Yours, etc.,



NUSSIN S. FOGEL  
Attorney for Plaintiff  
299 Broadway - Suite 1818  
New York, New York 10007  
(212) 385-1122

**Defendants' Addresses:****CITY OF NEW YORK**

1 Centre Street  
New York, NY 10007

**NEW YORK POLICE DEPARTMENT**

One Police Plaza  
New York, NY 10007

**POLICE OFFICER JUSTIN CONDE – Shield No.18142**

c/o NEW YORK POLICE DEPARTMENT  
Ninth (9th) Precinct  
321 East 5th Street  
New York, NY 10003

**POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345**

c/o NEW YORK POLICE DEPARTMENT  
Ninth (9th) Precinct  
321 East 5th Street  
New York, NY 10003

**POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787**

c/o NEW YORK POLICE DEPARTMENT  
Ninth (9th) Precinct  
321 East 5th Street  
New York, NY 10003

**POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250**

c/o NEW YORK POLICE DEPARTMENT  
Ninth (9th) Precinct  
321 East 5th Street  
New York, NY 10003

**POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364**

c/o NEW YORK POLICE DEPARTMENT  
Ninth (9th) Precinct  
321 East 5th Street  
New York, NY 10003

**POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983**

c/o NEW YORK POLICE DEPARTMENT  
Highway Patrol Unit 1  
Bronx, NY 10462

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
CORNELIUS M. JAMES,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

CITY OF NEW YORK, NEW YORK POLICE  
DEPARTMENT, POLICE OFFICER JUSTIN CONDE  
– Shield No.18142, POLICE OFFICER SAMUEL D.  
GARCIA – Shield No. 24345, POLICE OFFICER  
BAJRAM D. DOMBALIC – Shield No. 25787,  
POLICE OFFICER BRYAN D. THOOHO – Shield  
No. 5250, POLICE OFFICER EUGENE O.  
ADELEYE – Shield No. 1364 and POLICE OFFICER  
ANTHONY R. GROSSO – Shield No. 16983,

Defendants.  
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Plaintiff, CORNELIUS M. JAMES, for his Verified Complaint by his attorney, NUSSIN  
S. FOGEL, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a  
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,  
was and still is a municipal corporation duly organized under the laws of the State of New  
York.

3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE  
DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.

4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER  
JUSTIN CONDE – Shield No.18142, was and still is an employee of defendant, CITY OF  
NEW YORK.

5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

JUSTIN CONDE – Shield No.18142, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, at all times hereinafter mentioned, defendant, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, was and still is an employee of defendant, CITY OF NEW YORK.

7. That, at all times hereinafter mentioned, defendant, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

8. That, at all times hereinafter mentioned, defendant, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, was and still is an employee of defendant, CITY OF NEW YORK.

9. That, at all times hereinafter mentioned, defendant, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

10. That, at all times hereinafter mentioned, defendant, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, were and still are employees of defendant, CITY OF NEW YORK.

11. That, at all times hereinafter mentioned, defendant, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, were and still are employees of defendant, NEW YORK POLICE DEPARTMENT.

12. That, at all times hereinafter mentioned, defendant, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364, were and still are employees of defendant, CITY OF NEW YORK.

13. That, at all times hereinafter mentioned, defendant, POLICE OFFICER

EUGENE O. ADELEYE – Shield No. 1364, were and still are employees of defendant, NEW YORK POLICE DEPARTMENT.

14. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, were and still are employees of defendant, CITY OF NEW YORK.

15. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, were and still are employees of defendant, NEW YORK POLICE DEPARTMENT.

16. That, plaintiff herein has complied with all of the conditions precedent to the bringing of the within action and more particularly, on or about the 17th day of August, 2020, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2020PI020211; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence; and a statutory hearing was held on April 28, 2021.

17. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

18. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

19. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK,

operated the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

20. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

21. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

22. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

23. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

24. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the New York County Central Booking Facility located at 100 Centre Street, New York, NY.

25. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the North Infirmary Command located at 15-00 Hazen Street, East Elmhurst, NY.

26. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the North Infirmary Command located at 15-00 Hazen Street, East Elmhurst, NY.

27. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the North Infirmary Command located at 15-00 Hazen Street, East Elmhurst, NY.

28. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the North Infirmity Command located at 15-00 Hazen Street, East Elmhurst, NY.

29. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, controlled North Infirmity Command located at 15-00 Hazen Street, East Elmhurst, NY.

30. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, controlled the North Infirmity Command located at 15-00 Hazen Street, East Elmhurst, NY.

31. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, supervised the North Infirmity Command located at 15-00 Hazen Street, East Elmhurst, NY.

32. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, supervised the North Infirmity Command located at 15-00 Hazen Street, East Elmhurst, NY.

33. That, on or about June 11, 2020 at approximately 8:40 p.m. plaintiff herein was a lawfully on or about Park Avenue South on, about or between East 18th and East 19th Street, New York, NY.

34. That, on or about June 11, 2020 at approximately 8:40 p.m. at the aforesaid location plaintiff herein was unlawfully stopped, detained and injured by and through the negligent and improper use of holds, maneuvers, movements and techniques and thereafter arrested and imprisoned by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364

and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983.

35. That, at the aforesaid time plaintiff herein was unlawfully arrested and imprisoned by defendants herein at the aforesaid location.

36. That on or about June 11, 2020 at approximately 8:40 p.m. plaintiff herein remained unlawfully arrested and imprisoned thereat and was thereafter transported to the Bellevue Hospital Center located at 462 1st Avenue, New York, NY by defendants herein.

37. That, plaintiff herein remained unlawfully arrested and imprisoned thereat by defendants herein until on or about June 14, 2020.

38. That, on or about June 14, 2020 plaintiff herein was transported from the aforesaid location to the New York County Central Booking Facility located at 100 Centre Street, New York, NY where he remained unlawfully arrested and imprisoned and was thereafter unlawfully charged and maliciously prosecuted by defendants herein.

39. That, on or about June 14, 2020 plaintiff was transport to the North Infirmary Command located at 15-00 Hazen Street, East Elmhurst, NY where he remained falsely arrested and imprisoned, unlawfully charged and maliciously prosecuted by defendants herein until approximately October 22, 2020.

40. That, thereafter plaintiff herein remained unlawfully charged and maliciously prosecuted by defendants herein.

AS AND FOR A FIRST CAUSE OF ACTION

41. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “40” as if the same had been fully set forth herein.

42. That, at the aforesaid times and places, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER

BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, seriously and severely injured plaintiff herein.

43. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to sustain serious and severe injuries and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

44. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, without any negligence on the part of plaintiff herein contributing thereto.

45. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from being seriously and severely injured; negligently failed to prevent its agents, servants and/or employees from using improper holds, maneuvers, movements and techniques against plaintiff herein; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff herein would not be subject to the use of said improper holds, maneuvers, movements and techniques without provocation or knowledge that plaintiff herein posed a danger or threat; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

46. That, the occurrence herein was occasioned solely and wholly as a result of

the negligence of the defendants herein in their ownership, operation, maintenance, control and supervision of the aforesaid premises, facilities, agents, servants and employees thereat; and in their negligent performance and execution of its police, enforcement and investigational duties.

47. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A SECOND CAUSE OF ACTION

48. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "47" as if the same had been fully set forth herein.

49. That, at the aforesaid times and places, defendant officers, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, seriously and severely injured plaintiff herein.

50. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, carelessly, and negligently injured plaintiff herein and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

51. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, without any negligence on the part of plaintiff herein contributing thereto.

52. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, disregarded their duty to protect plaintiff herein; negligently used improper holds, maneuvers, movements and techniques on plaintiff herein and by reason thereof inflicted serious injuries upon plaintiff herein; failed to prevent plaintiff herein from being subjected to the negligent use of improper holds, maneuvers, movements and techniques; negligently took no action to stop the use of said improper holds, maneuvers, movements and techniques on plaintiff herein and by reason of the foregoing inflicted serious injuries upon plaintiff herein; and negligently, carelessly and recklessly performed and executed their police, enforcement and investigational duties.

53. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER

ANTHONY R. GROSSO – Shield No. 16983, in the performance and execution of their police, enforcement and investigational duties.

54. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

55. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs “1” through “54” as if the same had been fully set forth herein.

56. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, who caused plaintiff herein to incur serious and severe personal injuries.

57. That, defendants herein knew or should have known that, prior to, at and subsequent to the time when defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, engaged defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, that they were

persons of incompetence and indifference; that they had previously used improper holds, maneuvers, movements and techniques on persons within their care and custody and thereby inflicted serious injuries thereupon; had previously used excessive force against other individuals without just cause and provocation; that they had previously unlawfully and without just cause stopped, detained, questioned, falsely arrest, imprisoned and maliciously prosecuted persons under similar circumstances claimed herein; and were known by general reputation to be incompetent and indifferent.

58. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employees the defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, when these defendant correction officers were employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

59. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983.

60. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

61. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "60" as if the same had been fully set forth herein.

62. That, on or about June 11, 2020 at approximately 8:40 p.m. and continuing thereafter, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, attacked, assaulted, beat, battered and used excessive force on plaintiff herein, without cause or provocation.

63. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, failed to protect plaintiff herein and intentionally threatened, attacked, assaulted, beat, battered, used excessive force and inflicted the aforesaid injuries plaintiff herein.

64. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

65. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "64" as if the same had been fully set forth herein.

66. That, at the aforesaid times and places defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, failed to protect plaintiff herein and unjustly, intentionally, unlawfully stopped, detained and falsely arrested plaintiff herein or caused plaintiff herein to be, become and remain falsely arrested.

67. That, defendants POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, intentionally confined plaintiff; that, plaintiff herein was aware of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

68. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

69. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "68" as if the same had been fully set forth herein.

70. That, at the aforesaid times and places defendants, POLICE OFFICER

JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely imprisoned plaintiff herein or caused plaintiff herein to be, become and remain falsely imprisoned.

71. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, intended to confine plaintiff herein; plaintiff herein was conscious of the confinement; plaintiff herein did not consent to the confinement; and said confinement was not otherwise privileged.

72. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

73. Plaintiffs herein repeat, reiterate and re-allege each and every allegation as set forth in paragraphs “1” through “72” as if the same had been fully set forth herein.

74. That, at the aforesaid times and places plaintiff herein was maliciously prosecuted by defendants, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or posed a danger.

75. That, defendants herein caused criminal proceedings to be commenced

against the plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the criminal proceedings were brought out of actual malice.

76. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

77. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "76" as if the same had been fully set forth herein.

78. That, at the aforementioned times and places, plaintiff herein was unlawfully and without just cause stopped, questioned, detained, assaulted, beat, battered, subjected to excessive force, falsely arrest and imprisoned, and maliciously prosecuted by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983.

79. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

80. That, the improper and unlawful stopping, questioning, detaining, assault,

beating, battery, subjecting to excessive force, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

81. That, the acts of defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, were done under the color of law and under the color of authority to be executed justly by defendants herein.

82. That, the failure of defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, in the exercise of their functions and their failure to enforce the laws of the United States and of the City and State of New York were carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

83. That, the unlawful stopping, questioning, detaining, assault, beating, battery,

subjecting to the excessive use of force, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

84. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION**

85. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "85" as if the same had been fully set forth herein.

86. That, at the aforementioned times and places, plaintiff herein was improperly and unlawfully stopped, questioned, detained, assaulted, beat, battered, subjected to the excessive use of force, falsely arrested and imprisoned, and maliciously prosecuted by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER

SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, without just cause or provocation.

87. That, defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, used their position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

88. That, the improper and unlawful stopping, questioning, detaining, assault, beating, battery, subjecting to the excessive use of force, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendants, POLICE OFFICER JUSTIN CONDE – Shield No.18142, POLICE OFFICER SAMUEL D. GARCIA – Shield No. 24345, POLICE OFFICER BAJRAM D. DOMBALIC – Shield No. 25787, POLICE OFFICER BRYAN D. THOOHO – Shield No. 5250, POLICE OFFICER EUGENE O. ADELEYE – Shield No. 1364 and POLICE OFFICER ANTHONY R. GROSSO – Shield No. 16983, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State

of New York.

89. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

90. That, the violation of plaintiff's constitutional rights were caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and/or their deliberate indifference to the stopping, questioning, detaining, assaulting, beating, battering, subjecting to the excessive use of force, false arrest and imprisonment, and malicious prosecution by their police officers of plaintiff herein and other individuals in similar circumstances as those of plaintiff herein.

91. That, the custom, policy and/or official act and/or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidenced by their reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

92. That such acts, customs and/or policies and/or deliberate indifference thereto were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

93. That the knowledge of said acts, customs and/or policies and/or deliberate indifference thereto by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is demonstrated by the thousands of lawsuits filed, litigated, settled and/or tried to verdict by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, that allege the unlawful stopping, questioning, detaining, assaulting,

beating, battery, subjecting to the excessive use of force, false arrest and imprisonment, and malicious prosecution of individuals alleging incidents identical to those alleged herein as well as the continuous media coverage exposing and highlighting incidents identical to those alleged herein.

94. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and/or were deliberately indifferent thereto and did nothing to prevent and/or created and harbored conditions to permit and allow its police officers, including the named defendant-officers herein, to implement and carry out such acts, customs and/or policies with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

95. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known policies, customs and/or practices and/or deliberate indifference thereto led, allowed or permitted the unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein, thereby violating plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

96. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a

sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Seventh Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for an Eighth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Ninth Cause of Action; together with interest, costs and disbursements herein.

Dated: New York, NY  
June 4, 2021

Yours, etc.,

NUSSIN S. FOGEL  
Attorney for Plaintiff  
Office & Post Office Address  
299 Broadway, Suite 1818  
New York, NY 10007  
(212) 385-1122

## ATTORNEY'S VERIFICATION

STATE OF NEW YORK )

COUNTY OF NEW YORK )

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am NUSSIN S. FOGEL, the attorney of record for the plaintiff herein, in the within action; I have read the foregoing **Complaint** and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.

  
\_\_\_\_\_  
NUSSIN S. FOGEL

I affirm that the foregoing statements  
are true, under the penalties of perjury

Dated: New York, New York  
June 4, 2021